

**Certificate of Foreign Government or Other Foreign  
Organization for United States Tax  
Withholding and Reporting**(For use by foreign governments, international organizations, foreign central banks of issue, foreign  
tax-exempt organizations, foreign private foundations, and governments of U.S. territories.)Go to [www.irs.gov/FormW8EXP](http://www.irs.gov/FormW8EXP) for instructions and the latest information.

Section references are to the Internal Revenue Code.

Give this form to the withholding agent or payer. Do not send to the IRS.

OMB No. 1545-1621

**Do not use this form for:**

- A foreign government or other foreign organization that is not claiming the applicability of section(s) 115(2), 501(c), 892, 895, or 1443(b) . . . . . W-8BEN-E or W-8ECI
- A beneficial owner solely claiming foreign status or treaty benefits . . . . . W-8BEN or W-8BEN-E
- A foreign partnership (except for a withholding qualified holder under section 1445) or a foreign trust . . . . . W-8BEN-E or W-8IMY
- A person claiming that income is effectively connected with the conduct of a trade or business in the United States . . . . . W-8ECI
- A person acting as an intermediary . . . . . W-8IMY

**Instead, use Form:****Part I Identification of Beneficial Owner**

1 Name of organization

2 Country of incorporation or organization

**JANE EXAMPLE****UNITED STATES**3 Type of  
entity

- |                                                                                                       |                                                                          |
|-------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------|
| <input type="checkbox"/> Foreign government                                                           | <input type="checkbox"/> Foreign tax-exempt organization                 |
| <input type="checkbox"/> International organization                                                   | <input type="checkbox"/> Foreign private foundation                      |
| <input type="checkbox"/> Foreign central bank of issue (not<br>wholly owned by the foreign sovereign) | <input type="checkbox"/> Government of a U.S. territory                  |
|                                                                                                       | <input type="checkbox"/> Withholding qualified holder under section 1445 |

4 Chapter 4 Status (FATCA status):

- |                                                                                                   |                                                                                                                                                                             |
|---------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> Participating FFI.                                                       | <input type="checkbox"/> Foreign government (including a political subdivision),<br>government of a U.S. territory, or foreign central bank of issue.<br>Complete Part III. |
| <input type="checkbox"/> Reporting Model 1 FFI.                                                   |                                                                                                                                                                             |
| <input type="checkbox"/> Reporting Model 2 FFI.                                                   |                                                                                                                                                                             |
| <input type="checkbox"/> Registered deemed-compliant FFI<br>(other than a Reporting Model 1 FFI). | <input type="checkbox"/> Exempt retirement plan of foreign government. Complete Part III.                                                                                   |
| <input type="checkbox"/> Nonreporting IGA FFI. Complete Part III.                                 | <input type="checkbox"/> 501(c) organization. Complete Part III.                                                                                                            |
| <input type="checkbox"/> Territory financial institution. Complete Part III.                      | <input type="checkbox"/> Passive NFFE. Complete Part III.                                                                                                                   |
| <input type="checkbox"/> International organization.                                              | <input type="checkbox"/> Direct reporting NFFE.                                                                                                                             |
|                                                                                                   | <input type="checkbox"/> Sponsored direct reporting NFFE. Complete Part III.                                                                                                |

5 Permanent address (street, apt. or suite no., or rural route). Do not use a P.O. box or in-care-of address (other than a registered address).

**APT 4**

City or town, state or province. Include postal code where appropriate.

Country

**DENVER CO 80202****UNITED STATES**

6 Mailing address (if different from above).

**123 EXAMPLE STREET**

City or town, state or province. Include postal or ZIP code where appropriate.

Country

**80202****UNITED STATES**

7 U.S. TIN, if required (see instructions)

8a GIIN

b Foreign TIN (see instructions)

**123-45-6789****123-45-6789**

9 Reference number(s) (see instructions)

**Part II Qualification Statement for Chapter 3 Status****10 For a foreign government:**

- a ☐ I certify that the entity identified in Part I is a foreign government within the meaning of section 892 and the payments are within the scope of the exemption granted by section 892.

**Check box 10b or box 10c, whichever applies.**

- b ☐ The entity identified in Part I is an integral part of the government of \_\_\_\_\_.
- c ☐ The entity identified in Part I is a controlled entity of the government of \_\_\_\_\_.

**If box 10c is checked, check box 10d or box 10e, whichever applies.**

- d ☐ I certify that for a beneficial owner that is a controlled entity of a foreign sovereign (other than a foreign central bank of issue wholly owned by a foreign sovereign), the beneficial owner is not engaged in commercial activities within or outside the United States.
- e ☐ I certify that for a beneficial owner that is a foreign central bank of issue and a controlled entity of a foreign sovereign, the beneficial owner is not engaged in commercial activities within the United States.

**11 For an international organization:**

- ☐ I certify that:
- The entity identified in Part I is an international organization within the meaning of section 7701(a)(18), and
  - The payments are within the scope of the exemption granted by section 892.

**Part II Qualification Statement for Chapter 3 Status** *(continued)***12 For a foreign central bank of issue (not wholly owned by the foreign sovereign):**☐ I certify that:

- The entity identified in Part I is a foreign central bank of issue,
- The entity identified in Part I does not hold obligations or bank deposits to which this form relates for use in connection with the conduct of a commercial banking function or other commercial activity, **and**
- The payments are within the scope of the exemption granted by section 895.

**13 For a foreign tax-exempt organization, including foreign private foundations:**

If any of the income to which this certification relates constitutes income includible under section 512 in computing the entity's unrelated business taxable income, attach a statement identifying the amounts.

**Check either box 13a or box 13b.**

- a ☐ I certify that the entity identified in Part I has been issued a determination letter by the IRS dated \_\_\_\_\_ that is currently in effect and that concludes that it is an exempt organization described in section 501(c).
- b ☐ I have attached to this form an opinion from U.S. counsel concluding that the entity identified in Part I is described in section 501(c).

**For section 501(c)(3) organizations only, check either box 13c or box 13d.**

- c ☐ If the determination letter or opinion of counsel concludes that the entity identified in Part I is described in section 501(c)(3), I certify that the organization is not a private foundation described in section 509. I have attached an affidavit of the organization setting forth sufficient facts for the IRS to determine that the organization is not a private foundation because it meets one of the exceptions described in section 509(a)(1), (2), (3), or (4).
- d ☐ If the determination letter or opinion of counsel concludes that the entity identified in Part I is described in section 501(c)(3), I certify that the organization is a private foundation described in section 509.

**14 For a government of a U.S. territory:**

☐ I certify that the entity identified in Part I is a government of a territory of the United States, or is a political subdivision thereof, and is claiming the exemption granted by section 115(2).

**15 For a withholding qualified holder:****Check either box 15a or 15b.**

- a ☐ I certify that the entity identified in Part I is treated as a non-foreign person for purposes of sections 897 and 1445 because it is a qualified holder under Regulations section 1.897(l)-1(d).
- b ☐ I certify that the entity identified in Part I is treated as a non-foreign person for purposes of sections 897 and 1445 because it is a foreign partnership, all of the interests of which are held by qualified holders (under Regulations section 1.897(l)-1(d)), including through one or more partnerships.

**Part III Qualification Statement for Chapter 4 Status (if required)****16 For a nonreporting IGA FFI:**☐ I certify that the entity identified in Part I:

- Meets the requirements to be considered a nonreporting financial institution pursuant to an applicable IGA between the United States and \_\_\_\_\_;
- Is treated as a \_\_\_\_\_ under the provisions of the applicable IGA (see instructions); **and**
- If you are an FFI treated as a registered deemed-compliant FFI under an applicable Model 2 IGA, provide your GIIN: \_\_\_\_\_.

**17 For a territory financial institution:**

☐ I certify that the entity identified in Part I is a financial institution (other than an investment entity) that is incorporated or organized under the laws of a territory of the United States.

**18 For a foreign government (including a political subdivision), government of a U.S. territory, or foreign central bank of issue:**

☐ I certify that the entity identified in Part I is the beneficial owner of the payment and is not engaged in commercial financial activities of a type engaged in by an insurance company, custodial institution, or depository institution with respect to the payments, accounts, or obligations for which this form is submitted (except as permitted in Regulations section 1.1471-6(h)(2)).

**19 For an exempt retirement plan of a foreign government:****Check box 19a or box 19b, whichever applies.**

- a ☐ I certify that the entity identified in Part I is established and sponsored by a foreign government, international organization, central bank of issue, or government of a U.S. territory (each as defined in Regulations section 1.1471-6 or an applicable Model 1 or Model 2 IGA) to provide retirement, disability, or death benefits to beneficiaries or participants that are current or former employees of the sponsor (or persons designated by such employees); **or**
- b ☐ I certify that the entity identified in Part I is established and sponsored by a foreign government, international organization, central bank of issue, or government of a U.S. territory (each as defined in Regulations section 1.1471-6 or an applicable Model 1 or Model 2 IGA) to provide retirement, disability, or death benefits to beneficiaries or participants that are not current or former employees of such sponsor, but are in consideration of personal services performed for the sponsor.

**Part III Qualification Statement for Chapter 4 Status (if required) (continued)****20 For a 501(c) organization:**

- ☐ I certify that the entity identified in Part I is an entity described in section 501(c) but is not an insurance company described in section 501(c)(15).

**21 For a passive NFFE:**

- a** ☐ I certify that the entity identified in Part I is a foreign entity that is not a financial institution (other than an investment entity organized in a territory of the United States).

**Check box 21b or 21c, whichever applies.**

- b** ☐ I further certify that the entity identified in Part I has no substantial U.S. owners, **or**
- c** ☐ I further certify that the entity identified in Part I has provided a statement including the name, address, and TIN of each substantial U.S. owner of the NFFE (see instructions).

**22 Name of sponsoring entity:** \_\_\_\_\_

- ☐ I certify that the entity identified in Part I is a direct reporting NFFE that is sponsored by the entity identified in line 22.

**Part IV Certification**

Under penalties of perjury, I declare that I have examined the information on this form and to the best of my knowledge and belief it is true, correct, and complete. I further certify under penalties of perjury that:

- The organization for which I am signing is the beneficial owner of the income and other payments to which this form relates, and the beneficial owner is not a U.S. person; and/or
- The organization for which I am signing is a withholding qualified holder because it is a qualified holder under Regulations section 1.897(l)-1(d) or it is a partnership and all of its interests are held, directly or indirectly, by qualified holders under Regulations section 1.1445-1(g)(11).

Furthermore, I authorize this form to be provided to any withholding agent that has control, receipt, or custody of the payments of which I am the beneficial owner or any withholding agent that can disburse or make payments of the amounts of which I am the beneficial owner.

**I agree that I will submit a new form within 30 days if any certification made on this form becomes incorrect.**

- ☐ I certify that I have the capacity to sign for the entity identified on line 1 of this form.

**Sign  
Here**

\_\_\_\_\_  
Signature of authorized official

\_\_\_\_\_  
Print name

\_\_\_\_\_  
Date (MM-DD-YYYY)